

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 8, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited and led by Boy Scout Troop 114.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Dr. Aldrich, agenda item #18(f) was removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 25, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of the intersection of Old Happy Jack Road and Westland Road. Mark Christensen, Planning and Development Department, explained they received a petition to annex the land from the property owners, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Upon inquiry, Mr. Christensen advised the property will be utilized as an automobile shop with window tinting services and that the Board of Public Utilities deemed the proposed annexation area suitable for utilizing water and sewer in the area. There being no further comments or input, Mayor Collins closed the public hearing.

ORDINANCE –3rd READING – Creating a new Section 10.04.110, Amnesty Program, of Chapter 10.04, General Provisions, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Dr. Aldrich. Comments were made related to resolutions that will accompany the ordinance in the future establishing periodic one-time amnesty programs. Motion carried. Voting “yes” – all members of the governing body. (#4401)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading,

seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4402)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4403)

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to modify Articles 2.1 and 2.2 regarding posted and published notice requirements for divisions of land and zoning applications. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, Mark Christensen, Planning and Development Department, explained that generally the proposed ordinance amendment outlines the new requirements for posting signage notices for applications submitted to the Planning and Development Department, removing the requirement to post new notices after postponements, clarifies the posted notice requirement for city-initiated zoning applications and requires the city to mail notice to the affected property owners for city-initiated zoning applications. Mr. Christensen noted the proposed amendment was brought forward due to staff concerns with current procedures. Upon further inquiry, Mr. Christensen explained the parameter for mailing notices is currently properties within 300 ft. of the subject property. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending Section 15.08.031, Building Permit Fees-Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to reinstate the City of Cheyenne Core Development Incentivization Program. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Information on the incentivization program was provided including the affected area, previous program restrictive timeframe and desire to reinstate the program, how the program will allow infill development downtown and anticipated funding in the amount of \$50 million for downtown projects. Comments and concerns were made related to the eligible proposed area being only for the downtown core area. Request was made that should an amendment be made to include Wards II and III, the amendment be vetted through the City Attorney’s office. Further discussion included: contribution to economic development, infill development, available private project funding resources, project incentivization, benefits to small businesses, remediation costs, and inclusion of big box developments and franchise agreements if the program were to encompass other areas of town, success with prior program, Planning Commission involvement with the program, general effective dates of ordinances, support and opposition to including other areas of town in the program at this time, importance of a vibrant and inviting downtown and types of projects that may be eligible to participate in the program. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”.

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of the intersection of Old Happy Jack Road and Westland Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located northeast of the intersection of Old Happy Jack Road and Westland Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located southeast of and adjacent to the intersection of Western Hills Boulevard and Osage Avenue – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Meadowlark Estates, 2nd Filing, a replat of Tract 1 and a portion of Tracts 2-9 of Meadowlark Estates, Cheyenne, Laramie County, Wyoming (located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute §16-4-502 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Certifying the Converse Avenue Reconstruction Plan – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for the purchase of two complete bomb suits. Motion (per Consent Agenda) carried (in an amount of \$71,318.00). (#7438)

Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for the purchase of two Recon Robot Throwbot 2. Captain David Janes, Cheyenne Police Department, presented a robot device for reference and provided information on recon robots and the grant stating the robots are utilized by being placed in compromising locations, therefore protecting human lives. He further provided information on how the use of the robots applies to the 4th Amendment, noting case law exists, and advised a robot is an extension of an officer. Captain Janes explained policies that must be followed to utilize the robots. Upon inquiry, Captain Janes stated the current robot has been in use for 10 years and needs to be replaced. He confirmed the company that provides the robots is reputable and provides maintenance services noting the biggest difference in the new model is it will provide audio in addition to video. Comments were made related to case law, search and seizure and support of utilizing the robots while following policies. Mr. Roybal moved to approve in an amount of \$34,978.64, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#7439)

Telecommunications Right-of-Way and Use Agreement between Uniti National, LLC and the City of Cheyenne. Mr. Roybal advised at the request of staff, the item died due to a lack of motion at the Finance Committee, therefore, there was no recommendation from the committee.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex. Motion (per Consent Agenda) carried. (#7440)

[CA] Grant Award Agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2021 in the amount of \$106,817.35 for the Cheyenne Regional Response Team #7. Motion (per Consent Agenda) carried. (#7441)

Memorandum of Understanding between the City of Cheyenne and the Tourism Promotion Joint Powers Board, d/b/a Visit Cheyenne regarding the partnership to develop planning and design and implementation for a first phase of the Belvoir Ranch/Big Hole Project. Mr. Roybal moved to approve in the amount of \$100,000.00, seconded by Mr. White. Upon inquiry, City Treasurer Robin Lockman advised the funding has not been reappropriated, noting the funding is currently in the Annexation Improvement Fund and has been there for some time. Comments were made and included: support of the project and the importance of public involvement, project funding source and desire to move the project forward in a timely manner. Motion carried. Voting “yes” – all members of the governing body. (#7442)

Memorandum of Understanding between the City of Cheyenne and Robert Chamberlin to authorize filing of platting applications(s) for City-owned lands for the purpose of access and future development. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Upon inquiry, Mark Christensen, Planning & Development Department, noted the application is for the platting of the property and to allow the applicant to plat the property and reported the Urban Renewal Authority (URA) recently met and heard the application and development agreement between the city and Swagger Construction, LLC and the URA recommended approval in an amount not to exceed \$1.2 million with tax increment financing. Mr. Christensen provided further information on platting and replatting processes for city owned land including land donated to the city. He advised not all land owned by the city will be zoned P-Public due to different use types. Mr. Christensen explained when the land located adjacent to the Ice & Events Center was donated to the city, it was done through a deeding process. He further reported that a platting process clarifies the legal description for the title and the Laramie County Assessor’s Office. It was noted that for an administrative plat, the applicant would need to submit a preliminary plat application for approval. Upon inquiry, Mayor Collins advised the Ice & Events Center was originally zoned CB-Community Business as it was started as a private business. Mayor Collins advised some inquiries and comments being made were not germane to the topic. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#7443)

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for the 2021 Byrne Justice Assistance Grant for community-oriented policing overtime and benefits and firearms accessories (JAG21 Grant). Motion (per Consent Agenda) carried (in an amount of \$49,554.00). (#7444)

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for FY 2021 Law Enforcement Mental Health and Wellness Act Grant (LEMHWA Grant). Motion (per Consent Agenda) carried (in an amount of \$39,937.50). (#7445)

[CA] Lease Agreement between the State of Wyoming, Department of Wyoming State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails and the City of Cheyenne for lands in Curt Gowdy State Park. Motion (per Consent Agenda) carried. (#7446)

[CA] Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc., for the 5th Street Bridge Over Crow Creek Design Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$709,095.60). (#7447)

[CA] Grant of Access Easement and Temporary Construction Easement on City Owned Property, Tract H, Sweetgrass 1st Filing, between the City of Cheyenne and Sweetgrass Land Co. LLC – referred to Public Services Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Plan One Architects, for the Level I/Level II Feasibility Study for 15th Street Corridor Plan (Annexation Improvement Fund) – referred to Finance Committee.

[CA] Development Agreement between the City of Cheyenne and Swagger Construction, LLC, for Tax Increment Financing for the Hitching Post Plaza (TIF Funding) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7286 between the City of Cheyenne and Summit Engineering for additional construction management services for the Construction Management Services for Multi-Use Underpass for Pedestrian and Bicycles on College Drive connecting the Laramie County Community College and Sweetgrass Development (LCCC Greenway Underpass Project) (6th Penny Greenway Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$38,784.00). (#7286)

[CA] Contract Modification #1 to Contract #6959 between the City of Cheyenne and Short Elliot Hendrickson, Inc., for additional engineering and construction management services for the Airport Parkway Pavement Rehabilitation Project (2018-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$109,979.12). (#6959)

[CA] Contract Modification #1 to Contract #6606 between the City of Cheyenne and Trihydro Corporation for additional ground and surface water sampling at the Snyder-Ames Pumphouse Property (2018-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$11,565.00). (#6606)

[CA] Consideration of Bid #E-3-22 for furnishing one (1) new 2021-2022 1 ton, regular cab, full size pickup truck, 4x4, with an 8-foot box and a fleet work truck package for the City of Cheyenne, Community Recreation & Events Department-Weed & Pest Division (Weed & Pest Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-22 for furnishing two (2) new 2021-2022, 11 feet wide diesel rotary mowers for the City of Cheyenne, Community Recreation & Events Department-Parks Division (2015-2018 and 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Penstemon Business LLC d/b/a Bella Fuoco, 2115 Warren Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, and Emergency Procurement has been authorized by Mayor Collins for the emergency Municipal Building HVAC System Cleaning. The emergency cleaning has been authorized to Mighty Ducts for \$42,143.00.

Announcement was made of Public Hearing to be held November 22, 2021 at 6:00 p.m. at Storey Gym (LCSD#1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for a limited retail liquor license transfer of location application filed with the City Clerk's Office for AmVets Post 10, from 3839 E. Lincolnway to 1820 Ridge Rd., Cheyenne, Wyoming.

Under other business:

Mayor Collins reported on a request to rename a triangle shaped area of land near Randall Ave. after Bill Dubois in which he has received a name change petition containing 594 signatures that will be submitted to the City Clerk for processing. Mayor Collins advised members of the governing body the petition is available for them to sign if they so choose.

Mr. Johnson noted he believes comments and inquiries made during discussion relating to the Memorandum of Understanding between the City and Robert Chamberlin were relevant to the topic.

Mr. Johnson provided information on Cheyenne Historic Preservation Board Christmas ornament sales that benefit the airport fountain restoration project, noting any donations for the project would be appreciated.

Mr. Johnson commented on a recent McCormick Jr. High student fatality and offered contact information relating to Laramie County School District #1's policies regarding management of school crosswalks and correlation with the City's Engineering Department.

Dr. Aldrich recognized city employees who have served in the military noting the city's recognition of the Veteran's Day holiday. Dr. Aldrich further stated the city and community are heavily indebted to our local military personnel.

Mr. White expressed appreciation to military veterans and commented on the student fatality expressing sympathy to their family and friends and reported he was made aware of 2 more students who were struck in a cross walk. He stressed that public safety involves the entire community and asked for extra caution around school areas.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:04 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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